

GDPR/DSA — ДОПОЛНЕНИЯ v3

GitHub & OSF — (g)-(n) + C-154/21 + EU-адрес OSF

A. OSF — EU-адрес / Art. 27 + разблокировка

Находка: у Center for Open Science нет публичного представителя в ЕС (Art. 27); в privacy policy — только US-адрес. Не путать с Open Society Foundations / os4os.

Куда: support@osf.io + cc contact@cos.io. Почтовый: 6218 Georgia Avenue NW, Suite #1, Unit 3189, Washington, DC 20011, USA.

ВАЖНО (поправка): OSF уже разблокировали (сказали в письме), но на уточняющие вопросы не ответили. Разблокировка НЕ снимает обязанности: Art. 17(3) DSA (statement of reasons) и Art. 15 GDPR действуют независимо.

Пункт Art. 27 в письме OSF (English):

Article 27 GDPR — representative in the Union. Please identify your designated representative in the Union (name and contact address). If no such representative has been designated, please confirm this expressly. The absence of a designated Article 27 representative would itself constitute an infringement of the GDPR, which I reserve the right to raise with the Berliner Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI).

В. Пункты данных (в оба письма, раздел *Specific items*)

Рамка: это нейтральные запросы фактов (Art. 15/22 GDPR, Art. 17 DSA), не «доказательство цензуры». Что триггернуло — фиксируем, вывод потом.

Ранее (напоминание): (g) таймстемпы/score сервисов + деиндексация; (h) удаление из публичных индексов; (i) списания при отключённых функциях.

Новые (j)-(m):

(j) The technical type and operative architecture of the restriction applied to the account and/or its repositories, including whether it consisted of, or included, any visibility, discoverability, or stealth („shadow“) restriction (e.g. de-indexing, demotion, metadata isolation) as opposed to or in addition to a full account block. Please explain specifically why third parties encountered technical barriers — connection timeouts, access errors, or file/PDF rendering or download failures — when attempting to view, fork, or download files from my public repositories during the period, while the account interface internally displayed normal operational status.

(k) The complete output of the anti-abuse / spam classifier(s) applied, including: (i) the specific category label, the severity/risk score, and the probability or score threshold triggered; and (ii) the specific item that triggered the automated flag — identifying the commit hash, the individual file path within that commit, and/or the account/traffic signal concerned. If more than one trigger contributed, identify each.

(l) The human-review log and system audit trail, including: (i) the UTC timestamps at which the automated alert was generated and at which it was assigned to a human reviewer; (ii) the internal system identifier or pseudonymous identifier of the reviewer (the reviewer's personal name is not requested); (iii) the duration of the reviewer's access to my files, repositories, and account metadata; and (iv) the reviewer's findings, internal tags, or system notes that led to the restriction and to its subsequent lifting.

(m) Standard procedure and benchmarks: a description of your standard procedure for automated abuse/spam detections of this category — including whether and at what stage such detections are escalated to human review — your median processing time (SLA) from initial automated detection to human review and to action, and your notification policy, in particular why no contemporaneous notice or statement of reasons was issued to me at the moment any external-visibility restriction took effect (cf. Art. 17(1) and (3) DSA).

(OSF adaptation) The reinstatement of my account does not discharge your obligation to provide a statement of reasons under Art. 17(3) DSA, nor to answer my Art. 15 GDPR request within Art. 12(3) GDPR; I renew both. As my OSF account held no uploaded content at the time of the flag, items (k)-(m) apply to the account/identifier/IP signal(s) that triggered the flag and to the human-review and procedure records; the commit/file, fork, and download items are inapplicable.

Новое (n) — стороннее/гос. участие (нейтрально):

(n) Third-party, governmental, and law-enforcement involvement (Art. 15(1)(c) and (g) GDPR; Art. 16 DSA). Please confirm whether the action taken in respect of the account 'skovnats' or its repositories was triggered by, contributed to by, or accompanied by any communication from a third party — including any private entity, any notifier under Art. 16 DSA, any security contractor, or any governmental, administrative, intelligence, or law-enforcement authority of any jurisdiction. If so, please provide, to the extent not prohibited by a specific and identified legal restriction: (i) the date and UTC timestamp of the communication; (ii) the identity or category of the originating entity; (iii) the legal or statutory basis invoked; and (iv) the specific processing or restriction requested or carried out as a result. If you withhold any such information, please identify the specific legal provision authorising you to do so.

Напоминание о праве на ИМЕНА (в раздел оснований):

Legal basis — identity of recipients. I rely on Art. 15(1)(c) GDPR as interpreted by the Court of Justice of the European Union in Case C-154/21, RW v Österreichische Post AG (judgment of 12 January 2023): the data subject is entitled, upon request, to the actual identity of the recipients of their personal data, not merely the categories of recipients. I therefore request the specific identities. An incomplete or evasive response will be treated as a failure to respond within the meaning of Art. 12(3)

GDPR, and I reserve the right to lodge a complaint with the competent supervisory authority under Art. 77 GDPR.

Чего НЕ добавлять: театральные «штрафы €20 млн / 4%» и угрозы § 274/§ 263 StGB. Это читается как querulatorisch и ослабляет запрос. Сдержанная оговорка (Art. 12(3) + Art. 77) весит больше.

С. «Профущерб» — для консультации (не в письма)

Реалистично: § 812 BGB (возврат платы за отключённое — чистый); Art. 82 GDPR (немат. ущерб — скромный); задокументированные out-of-pocket.

Слабо: потеря видимости (причинность; DOI на Zenodo, не GitHub; отменено), § 252 BGB. «Умысел через стат-тесты» для § 812/GDPR/DSA не нужен — отдельный research/ASPE.

Спросить адвоката: что реально взыскуемо; Stichentscheid (§ 128 VVG) против ROLAND; Versicherungsombudsmann (RSV не покрывает спор против себя).

С Богом, возможно.